		The Court will set the undertaking in the sum of $25,000. This represents a "use and occupancy" component comprised of a $4,000 monthly rental figure for a one-year appeal period limited to defendant/cross-complainant, Stephanie Chang's (Chang) 50% proportional interest in the subject property, plus a nominal amount of $1,000 for the waste component as the Court finds there is very little risk of waste here. The undertaking is subject to increase if the appeal remains pending longer than one year. Lawrence is ordered to keep mortgage payments, taxes, utilities, and insurance on the subject property current and to provide monthly proof of payment thereof to Chang's counsel. Counsel for Lawrence shall submit a proposed order in accordance with this ruling. Status Conference set for this date is **OFF-CALENDAR**. Counsel for Lawrence shall give notice.
6	Farrow v. Goulis	The motion to stay proceedings filed by defendants Kelly Goulis, Chander Burgos, and Rohit Chauhan (collectively, Defendants) is **GRANTED**. Defendants move to stay this proceeding pending resolution of the related probate matter, *In the Matter of the Elizabeth Thermos 1998 Trust, as Amended and Restated*, Los Angeles Superior Court Case No. 22STPB12506, involving plaintiff Maria Farrow, as Trustee of the Elizabeth Thermos 1998 Trust dated May 21, 1998, as amended and restated (Plaintiff) and defendant Kelly Goulis. "Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; *see also* Code Civ. Proc., § 128, subd. (a) ["Every court shall have the power . . . (3) [t]o provide for the orderly conduct of proceedings before it . . . [and] (8) [t]o amend and control its process and orders so as to make them conform to law and justice."].) "When an action is brought in a court of this state involving the same parties and the same subject matter as an action already pending in a court of another jurisdiction, a stay of the California proceedings is not a matter of right, but within the sound discretion of the trial court. In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced." (*Farmland Irr. Co. v. Dopplmaier* (1957) 48 Cal.2d 208, 215.) The Court finds a stay of the instant action pending resolution of the probate proceeding warranted to avoid inconsistent rulings and to

promote judicial efficiency. Both parties agree that the validity of the trust amendment that names Plaintiff as trustee of the Elizabeth Thermos 1998 Trust dated May 21, 1998, as amended and restated (Thermos Trust) is currently being litigated in the probate matter. As Defendants argue, a determination by the probate court that said trust amendment is invalid would nullify any actions taken by Plaintiff as purported trustee (including electing herself as director of Urethane Products Corporation (UPC) based on her standing as trustee of the Thermos Trust) and could render the instant action moot. If this Court proceeds with the instant action and makes a finding as to the validity of UPC director elections, such a finding could potentially conflict with a determination of trust validity made by the probate court. Moreover, as Defendants argue, in adjudicating the instant action, this Court would necessarily be confirming Plaintiff's authority as trustee, which determination could potentially conflict with findings in the probate court.

Although Plaintiff is correct that the probate and civil actions will decide different issues, both cases involve the same underlying subject matter – i.e., Plaintiff's authority as trustee of the Thermos Trust. As that issue is already being litigated in the probate court, a stay of the current proceeding pending resolution of the probate case is warranted to avoid conflicting rulings and duplicative litigation.

Furthermore, the issue of Plaintiff's authority as trustee is best determined by the probate court as that court has exclusive jurisdiction of proceedings concerning the internal affairs of trusts. (See Probate Code, § 17000(a); *Harnedy v. Whitty* (2003) 110 Cal.App.4th 1333, 1345 ["Internal trust affairs, for example, include modification of the terms of the trust, changes in a designated successor trustee, other deviation from trust provisions, authority over the trustee's acts, or the administration of the trust's financial arrangements."].)

Plaintiff argues repeatedly that her powers as trustee have not been suspended and she thus has standing and the authority to proceed with this section 709 action. But this misses the point. The issue is not whether Plaintiff currently has standing to proceed with this action, but whether this Court should exercise its discretion to stay the action pending resolution of the probate case. For the reasons discussed above, the Court will do so.

Plaintiff has not adequately shown or offered sufficient evidence to support the contention that UPC's operations will be harmed by a stay.

Accordingly, the motion is **GRANTED**.

A Status Conference re: Status of Probate Matter is scheduled for October 16, 2026, at 9:30 a.m. in Dept. N17.

The parties' requests for judicial notice are **GRANTED** as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d); *Fontenot*

		v. Wells Fargo Bank, NA (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.) The parties' evidentiary objections are **OVERRULED**. Defendants shall give notice.
7	Fleck v. AutoNation, Inc.	O/C
8	Geraci v. Geraci LLP	Before the Court are the following two motions: (1) motion to disqualify attorney of record filed by plaintiffs Anthony Geraci and Geraci Legal Corporation (collectively, Plaintiffs); and (2) motion to compel arbitration filed by defendants Geraci LLP; Daghbandan Service APC; KKCN Legal APC; Wimeo APC; Lightning Docs LLC; Nema Daghbandan; Natalie Daghbandan; Melissa Martorella; Kevin Kim; Siuen Kim; Dennis Baranowski; and Cameo Baranowski (collectively, Defendants). For the reasons set forth below, Motion 1 is **DENIED** and Motion 2 is **GRANTED**. **<u>Motion No. 1: Motion to Disqualify Attorney</u>** Plaintiffs move for an order disqualifying Raines Feldman Littrell LLP (Defense Counsel) as counsel of record for Defendants. Plaintiffs contend Defense Counsel's concurrent representation of Geraci LLP and Lightning Docs LLC, as well as the individual defendants and their alter ego entities, creates an irreconcilable conflict of interest necessitating Defense Counsel's disqualification. (See Cal. Rules of Prof. Conduct, Rule 1.7.) Plaintiffs contend a conflict exists because Defense Counsel simultaneously represents the very entities harmed—Geraci LLP and Lightning Docs LLC—alongside the insiders of those entities accused of "looting and mismanaging them." "[W]here the same attorney simultaneously represents potentially conflicting parties, the primary interest at stake is the attorney's duty of loyalty. (Citation.)…When the duty of loyalty applies, courts have found the conflict to require "*per se,* or automatic disqualification, in all but a few instances." (Citation.) "The strict proscription against dual representation of clients with adverse interests thus derives from a concern with protecting the integrity of the attorney-client relationship rather than from concerns with the risk of specific acts of disloyalty or diminution of the quality of the attorney's representation." (Citation.) … [¶] A potential conflict, however, does not warrant automatic disqualification of joint counsel. (Citations.)" (*Gong v. RFG Oil, Inc.* (2008) 166 Cal.App.4th 209, 214-215.) Here, Plaintiffs have not shown that any actual conflict exists. Plaintiffs argue summarily that the complaint alleges insider misconduct and looting and mismanagement of Geraci LLP and